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BILL NO. 1484

By: Rosino and McIntosh of the
Senate

An Act relating to medicolegal investigations; amending 63 O.S. 2021, Section 1-317d, which relates to sudden unexplained infant death investigations; defining terms; broadening applicability of certain requirements; describing investigations; requiring certain documentation and reporting of specified cases; requiring certain notice to parent or legal guardian; conferring certain right on parent or legal guardian; amending 63 O.S. 2021, Section 938, as amended by Section 3, Chapter 263, O.S.L. 2024 (63 O.S. Supp. 2025, Section 938), which relates to types of deaths to be investigated; requiring investigation of certain deaths; updating statutory reference; providing for recodification; and providing an effective date.

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-317d, is amended to read as follows:

Section 1-317d. A. As used in this section:

1. "Sudden arrhythmic death syndrome" (SADS) means the sudden
and unexpected death due to cardiac arrhythmia, as determined by

1 performance of an investigation, of a young, apparently healthy
2 individual with no previously diagnosed structural heart disease;

3 2. "Sudden death in the young" (SDY) means the sudden and
4 unexpected death of an individual younger than twenty (20) years of
5 age due to natural causes including, but not limited to, sudden
6 cardiac death or sudden unexpected death in epilepsy (SUDEP), which
7 death remains unexplained after investigation;

8 3. "Sudden infant death syndrome" (SIDS) means the sudden death
9 of an infant younger than one year of age that remains unexplained
10 after investigation;

11 4. "Sudden unexpected infant death" (SUID) means the sudden and
12 unexpected death of an infant younger than one (1) year of age,
13 whether explained or unexplained, including, but not limited to,
14 death caused by SIDS, accidental suffocation, or other potential
15 causes; and

16 5. "Sudden Unexpected Infant Death (SUID) and Sudden Death in
17 the Young (SDY) Case Registry" means the national surveillance
18 system coordinated by the Centers for Disease Control and Prevention
19 and the National Institutes of Health which collects standardized
20 data on sudden and unexpected deaths in individuals younger than
21 twenty (20) years of age.

22 B. 1. When ~~the death of~~ an infant ~~occurs~~ or child dies
23 suddenly and unexpectedly in this state ~~and the cause of death is~~
24 ~~considered undetermined,~~ including cases of SIDS, SUID, or SDY, a

1 medical examiner shall conduct a ~~sudden unexplained infant death~~
2 ~~investigation (SUIDI)~~ an investigation not more than forty-eight
3 (48) hours after the death has occurred. The ~~medical examiner or a~~
4 ~~medical examiner investigator currently certified by the American~~
5 ~~Board of Medicolegal Death Investigators shall~~ investigation shall
6 include:

- 7 a. an autopsy if deemed necessary by the medical examiner
8 to determine the cause of death,
- 9 b. microscopic and toxicology studies,
- 10 c. a review of the infant's or child's immunization and
11 medical records, as available through the state's
12 immunization registry, from the infant's or child's
13 pediatrician or primary care practitioner, or from
14 other sources, and
- 15 d. an interview of the parent, legal guardian or
16 caregiver of, or person who last had contact with, the
17 deceased infant and shall fill out the Centers for
18 Disease Control and Prevention's SUIDI reporting form
19 accordingly or child.

20 2. The medical examiner shall document in the investigative
21 report any immunizations or emergency countermeasures administered
22 to the infant or child within ninety (90) days before the infant's
23 or child's death, report the case to the SUID and SDY Case Registry
24 in accordance with protocols established by the Board of Medicolegal

1 Investigations and the Centers for Disease Control and Prevention,
2 and forward such report to the State Department of Health.

3 C. 1. When a sudden death of an individual of any age that is
4 suspected to be caused by SADS occurs, a medical examiner shall
5 conduct an investigation. The investigation shall include:

- 6 a. an autopsy if deemed necessary by the medical examiner
7 to determine the cause of death,
- 8 b. microscopic and toxicology studies, and
- 9 c. a review of the individual's immunization and medical
10 records, as available through state health databases
11 or other sources.

12 2. The medical examiner shall document in the investigative
13 report any immunizations or emergency countermeasures administered
14 to the individual within ninety (90) days before his or her death,
15 report the case to the SUID and SDY Case Registry if the individual
16 was younger than twenty (20) years of age at the time of death, in
17 accordance with protocols established by the Board of Medicolegal
18 Investigations and the Centers for Disease Control and Prevention,
19 and forward such report to the State Department of Health.

20 D. The State Department of Health shall retain a copy of each
21 completed SUIDI reporting form in order to compile report for the
22 purpose of compiling accurate and reliable data on SUID, SIDS, SUID,
23 SDY, and SADS to aid and inform the policies of the Department, and
24

1 ~~the Department shall provide a copy of each completed SUIDF~~
2 ~~reporting form to the Child Death Review Board.~~

3 ~~B. As used in this section, "medical examiner" means the Chief~~
4 ~~Medical Examiner, the Deputy Chief Medical Examiner or a medical~~
5 ~~examiner appointed by the Chief Medical Examiner pursuant to Section~~
6 ~~937 of Title 63 of the Oklahoma Statutes.~~

7 E. 1. The medical examiner shall notify the parent or legal
8 guardian of a deceased child or infant prior to conducting an
9 investigation as described in this section and shall inform the
10 parent or legal guardian of the right conferred by paragraph 2 of
11 this subsection.

12 2. The parent or legal guardian of a deceased child or infant
13 may refuse to consent to any investigation or any part of an
14 investigation described in this section of the deceased child or
15 infant, unless the medical examiner suspects that a crime was
16 committed involving the death of the child or infant or the death is
17 otherwise required to be investigated under Section 938 of this
18 title.

19 SECTION 2. AMENDATORY 63 O.S. 2021, Section 938, as
20 amended by Section 3, Chapter 263, O.S.L. 2024 (63 O.S. Supp. 2025,
21 Section 938), is amended to read as follows:

22 Section 938. A. All human deaths of the types listed herein
23 shall be investigated as provided by law:
24

- 1 1. Violent deaths, whether apparently homicidal, suicidal, or
2 accidental;
- 3 2. Deaths under suspicious, unusual, or unnatural
4 circumstances;
- 5 3. Deaths related to disease which might constitute a threat to
6 public health;
- 7 4. Deaths unattended by a licensed physician for a fatal or
8 potentially fatal illness;
- 9 5. Deaths that are medically unexpected and that occur in the
10 course of a therapeutic procedure;
- 11 6. Deaths of any persons detained or occurring in custody of
12 the Department of Corrections or a county jail;
- 13 7. Deaths of persons whose bodies are to be cremated,
14 transported out of the state, donated to educational entities, to
15 include limited portions of the body, or otherwise made ultimately
16 unavailable for pathological study; and
- 17 8. Maternal deaths that occur during pregnancy or within one
18 (1) year of termination of pregnancy reported by a hospital or
19 birthing center under ~~Section 2 of this act~~ Section 1-702f of this
20 title; and
- 21 9. Deaths involving sudden infant death syndrome (SIDS), sudden
22 unexpected infant death (SUID), sudden death in the young (SDY), or
23 sudden arrhythmic death syndrome (SADS) as provided by Section 1-
24 317d of this title.

1 B. The Chief Medical Examiner shall state on the certificate of
2 death of all persons whose death was caused by execution pursuant to
3 a lawful court order that the cause of death was the execution of
4 such order.

5 SECTION 3. RECODIFICATION 63 O.S. 2021, Section 1-317d,
6 as amended by Section 1 of this act, shall be recodified as Section
7 941c of Title 63 of the Oklahoma Statutes, unless there is created a
8 duplication in numbering.

9 SECTION 4. This act shall become effective November 1, 2026.

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11 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
12 OVERSIGHT, dated 04/16/2026 - DO PASS.
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